

LA-CCRP-ART-998

ARTICLE 998 MOTION FOR EXPUNGEMENT FOR MISDEMEANOR CONVICTION FOR A FIRST OFFENSE POSSESSION OF MARIJUANA, UNDER ARTICLE 977(D)

Municipal and Traffic Court of New Orleans, Traffic Division, STATE OF LOUISIANA
JUDICIAL DISTRICT FOR THE PARISH OF: Parish of Saint John the Baptist
STATE OF LOUISIANA v. Maria-Alejandra O'Shaughnessy-Whitfield
No.: TEST-BOUNDARY-2026-0000000000000001
Division: Division Z-Long

MOTION FOR EXPUNGEMENT FOR MISDEMEANOR CONVICTION FOR A FIRST OFFENSE POSSESSION OF MARIJUANA

La. C.Cr.P. arts. 977(D) and 998. Article 986 makes this the form to be used for this category; the Article 989 motion the other Louisiana tracks use is not used here.

NOW INTO COURT comes mover, who provides the court with the following information in connection with this request:

I. DEFENDANT INFORMATION

NAME:

(Last, First, MI)

DOB: 12/31/1968 (MM/DD/YYYY)

GENDER: Female Male

SSN (last 4 digits): XXX-XX-.....

RACE:

DRIVER LIC. #:

ARRESTING AGENCY: Saint John the Baptist Parish Sheriff's Office, Criminal Patrol Division

SID# (if available):

ARREST NUMBER (ATN):

AGENCY ITEM NO.:

Race and gender are left blank for the mover to complete by hand.

Mover is entitled to expunge the record of his arrest/conviction pursuant to Louisiana Code of Criminal Procedure Article 971 et seq. and states the following in support:

II. MISDEMEANOR CONVICTION FOR A FIRST OFFENSE POSSESSION OF MARIJUANA

1. Mover was convicted on 11/30/2023 (MM/DD/YYYY)

Article 977(D) provides that notwithstanding any provision of law to the contrary, a person may file a motion to expunge his record of arrest and conviction of a misdemeanor conviction for a first offense possession of marijuana, tetrahydrocannabinol or chemical derivatives thereof after ninety days from the date of conviction. The ninety days run from the conviction date written above.

Whether this conviction was the mover's FIRST possession offense is the whole eligibility test under Article 977(D), and it is a fact of the mover's own criminal history rather than one this form decides. A second or later possession offense falls under Article 977(A) instead. If it is unclear which this is, stop and get a lawyer's advice before filing anything.

PRAYER

The words below are the Legislature's own, reproduced from the text of Article 998, as Article 986(A) requires.

The Mover prays that if there is no objection timely filed by the arresting law enforcement agency, the district attorney's office, or the Louisiana Bureau of Criminal Identification and Information, that an order be issued herein ordering the expungement of the record of arrest and/or conviction set forth above, including all photographs, fingerprints, disposition, or any other such information, which record shall be confidential and no longer considered a public record, nor be made available to other persons, except a prosecutor, member of a law enforcement agency, or a judge who may request such information in writing, certifying that such request is for the purpose of prosecuting, investigating, or enforcing the criminal law, for the purpose of any other statutorily defined law enforcement or administrative duties, or for the purpose of the requirements of sex offender registration and notification pursuant to the provisions of R.S. 15:541 et seq. or as an order of this court to any other person for good cause shown, or as otherwise authorized by law.

If an "Affidavit of No Opposition" by each agency named herein is attached hereto and made a part hereof, defendant requests that no contradictory hearing be required and the motion be granted ex parte.

Respectfully submitted,

LA-CCRP-ART-998. Statutory source note: Acts 2023, No. 342, Sec. 1.

IF REPRESENTED BY COUNSEL - ATTORNEY BLOCK

Signature of Attorney for Mover/Defendant:

Attorney for Mover/Defendant Name:

Attorney's Bar Roll No.:

Address:

City, State, ZIP Code:

Telephone Number:

This block is left blank. An attorney block is completed by counsel, or not at all. Article 998 prints both signature blocks, so both appear here.

IF NOT REPRESENTED BY COUNSEL - UNREPRESENTED MOVER BLOCK

Signature of Mover/Defendant:

Date of the mover's signature:

Mover/Defendant Name: Maria-Alejandra O'Shaughnessy-Whitfield

Mover postal address:

City, State, ZIP Code:

Telephone Number:

FOR THE CLERK - LEAVE BLANK

Filed on stamp applied by the clerk:

Certificate of service filed by the clerk showing the mailing date:

Under Article 979 the clerk serves the motion on the district attorney of the parish of conviction, the Louisiana Bureau of Criminal Identification and Information and the arresting law enforcement agency, and files the certificate of service. The mover serves nobody.

LA-CCRP-ART-991
ARTICLE 991 ORDER

Municipal and Traffic Court of New Orleans, Traffic Division, STATE OF LOUISIANA
JUDICIAL DISTRICT FOR THE PARISH OF: Parish of Saint John the Baptist
STATE OF LOUISIANA v. Maria-Alejandra O'Shaughnessy-Whitfield
No.: TEST-BOUNDARY-2026-0000000000000001
Division: Division Z-Long

ORDER

La. C.Cr.P. art. 991, on the statutory Article 991 form.

COURT USE ONLY - UNEXECUTED PROPOSED ORDER. Nothing on this page has been decided, and no relief exists unless and until a judge completes and signs it and the clerk enters it.

Ordering paragraphs on the Article 991 Order:

.....
.....
.....
.....

Direction setting the sixty-day objection window and directing service:

.....

The Article 991 Order sets the objection window for the district attorney, the arresting law enforcement agency and the Louisiana Bureau of Criminal Identification and Information, and directs the clerk to serve. Each is the court's to write.

Finding that no contradictory hearing is required:

Where an Affidavit of No Opposition executed by each entity named in Article 979 is attached to the motion, the Article 991 Order provides that no contradictory hearing is required. That finding is the court's to make.

Return date set for a contradictory hearing:

Date of the court order:

Place of the court order:

Signature of the judge on the Article 991 Order:

LA-CCRP-ART-992

ARTICLE 992 ORDER OF EXPUNGEMENT OF ARREST AND CONVICTION RECORD

Municipal and Traffic Court of New Orleans, Traffic Division, STATE OF LOUISIANA
JUDICIAL DISTRICT FOR THE PARISH OF: Parish of Saint John the Baptist
STATE OF LOUISIANA v. Maria-Alejandra O'Shaughnessy-Whitfield
No.: TEST-BOUNDARY-2026-0000000000000001
Division: Division Z-Long

ORDER OF EXPUNGEMENT OF ARREST AND CONVICTION RECORD
La. C.Cr.P. art. 992, on the statutory Article 992 form.

COURT USE ONLY - UNEXECUTED PROPOSED ORDER. The mover supplies the caption and the identifiers of the record to be expunged, and nothing else on this page.

THE RECORD FOR WHICH EXPUNGEMENT IS SOUGHT

Date of arrest as it appears on the state rap sheet: 2023-08-01
Arresting law enforcement agency: Saint John the Baptist Parish Sheriff's Office, Criminal Patrol Division
Original arrest charge and statute for every count as they appear on the state rap sheet:

.....
.....

How many separate charges or counts this arrest carries: Three charges on one arrest
Date the mover was convicted: 2023-11-30

Whether the conviction is a misdemeanor or a felony: Misdemeanour

Statute the mover was convicted under:

Whether this was the mover's first offense for possession of marijuana, tetrahydrocannabinol or a chemical derivative:
.....

The Article 998 statutory motion prints no field for the date of arrest, for how many charges or counts the arrest carries, for the original arrest charges, for whether the conviction is a misdemeanor or a felony, for the statute of conviction, or for whether this was a first possession offence. Article 986(A) makes the statutory forms exclusive and Article 986(C) allows only the name of the court to vary on one. All six are needed to identify the record this decree reaches, so all six are carried here, on the order, rather than added to the face of a mandatory form.

Whether the motion is granted or denied:

Findings on the Article 992 Order of Expungement:

.....
.....

Decretal paragraphs on the Article 992 Order of Expungement:

.....
.....
.....
.....

Direction to serve the order and judgment after expungement is granted:

Under Article 982, if expungement is granted the clerk of court serves the order and judgment on the district attorney, the Louisiana Bureau of Criminal Identification and Information, the sheriff of the parish of conviction and the arresting law enforcement agency.

Date of the court order:

Place of the court order:

Signature of the judge on the Article 992 Order of Expungement:

la-977d-marijuana-first-offense-instructions-5

ARTICLE 977(D) PARTICIPANT AND FILING INSTRUCTIONS

Assigned component identity: la-977d-marijuana-first-offense-instructions-5

Participant full legal name on the instructions: Maria-Alejandra O'Shaughnessy-Whitfield

Motion for Expungement for Misdemeanor Conviction for a First Offense Possession of Marijuana (La. C.Cr.P. arts. 977(D), 998)

Prepared for Maria-Alejandra O'Shaughnessy-Whitfield. Packet set la-977d-marijuana-first-offense-set, version 1.0.0.

This packet set serves 1 route(s):

-

obligation:track-pathway:LA:la-977d-marijuana-first-offense:first-offense-marijuana-expungement-after-90-days-art-998

The article this packet proceeds under, and the form it uses

Louisiana runs separate expungement tracks off separate articles, and they are not interchangeable. This packet is the Article 977(D) track and it uses the Article 998 form. Article 986 makes Article 998 the form to be used for this category, and the Article 989 motion the sibling tracks use is not used here. An ordinary misdemeanour conviction is Article 977(A) on the Article 989 form, an arrest without conviction is Article 976, a felony conviction is Article 978, a record naming more than one person is Article 985 redaction, and a felony arrest that ended in a misdemeanour conviction is the Article 985.1 interim expungement.

Article 977(D) provides that notwithstanding any provision of law to the contrary, a person may file a motion to expunge his record of arrest and conviction of a misdemeanour conviction for a first offence possession of marijuana, tetrahydrocannabinol or chemical derivatives thereof after ninety days from the date of conviction. It replaces both the Article 894(B) set-aside requirement and the five-year wait that Article 977(A) would otherwise impose. Article 986 makes Article 998 the form to be used, and Article 998 is a dedicated motion form for this category, separate from Article 989. Article 977(D) carries no sunset of its own and remains in the current official text with the Article 977 source notes running through Acts 2023, No. 342.

The committed record lists 14 authorities for this track:

- La. C.Cr.P. art. 977(D)

- La. C.Cr.P. art. 998

- La. C.Cr.P. art. 983

- La. C.Cr.P. art. 986

- La. C.Cr.P. art. 975

- La. C.Cr.P. art. 979

- La. C.Cr.P. art. 980

- La. C.Cr.P. art. 982

- La. C.Cr.P. art. 988
- La. C.Cr.P. art. 990
- La. C.Cr.P. art. 991
- La. C.Cr.P. art. 992
- La. R.S. 40:966(C)
- Acts 2023, No. 342

The ninety days, and what did and did not end in August 2026

- The route runs after ninety days from the date of conviction. That is the whole waiting period; Article 977(D) replaces both the Article 894(B) set-aside requirement and the five-year wait Article 977(A) would otherwise impose.
- What ended on 1 August 2026 was the REDUCED FEE, not this route. The three-hundred-dollar cap formerly in Article 983(M) was null, void and without effect and terminated by its own terms under Article 983(M)(5). Article 977(D) itself carries no sunset and survives.
- So the ordinary Article 983(A) five-hundred-fifty-dollar cap now applies to this motion. Any advice you have seen telling you to file by 31 July 2026 is historical and is not current guidance.

What is in this packet

- la-977d-marijuana-first-offense-primary-filing-1 - Article 998 Motion for Expungement for Misdemeanor Conviction for a First Offense Possession of Marijuana, under Article 977(D) (primary_filing, required).
- la-977d-marijuana-first-offense-proposed-order-2 - Article 991 Order (proposed_order, required).
- la-977d-marijuana-first-offense-proposed-order-3 - Article 992 Order of Expungement of Arrest and Conviction Record (proposed_order, required).
- la-977d-marijuana-first-offense-instructions-5 - Article 977(D) Participant and Filing Instructions (instructions, required).

The Article 998 motion in this packet is composed from the Legislature's own text of Article 998, bound to this packet by the content digest 8625ccd4043e2045832f647331984372390c74d1e5e10166e40b305c1d445fb4. Its prayer and its ex parte paragraph are the statute's own words, lifted from those bytes rather than paraphrased, because Article 986(A) makes the statutory forms exclusive and Article 986(C) allows only the name of the court to vary.

What is not generated, and the condition the record states

- la-977d-marijuana-first-offense-fee-waiver-4 (fee_waiver, LA-CCRP-ART-988): Generated only where the participant may qualify for the Article 983(F) exemption, whose grounds are non-conviction grounds and so rarely reach this track. This packet does not meet that condition, so the component is not generated.

How your name goes on the Article 998 motion, and why this packet did not write it

Write your name on the Article 998 motion SURNAME FIRST. The line is headed NAME: and the statute rules it underneath, in its own words, (Last, First, MI) - your last name, then your first name, then your middle initial. Spell it exactly as the state rap sheet spells it: the Louisiana Bureau of Criminal Identification and Information matches this motion to your record by that name.

This packet left that line blank rather than filling it in. The only form of your name this platform holds is one whole string, with no mark saying which part of it is your surname, so writing it into a line that asks for the surname first would have been a guess about your own name on a document you sign and a clerk files. The rest of the packet uses your name in ordinary order, which is what those places ask for: the caption of each document, and the signature block at the end of the motion.

Internal record text: what the record says, and why it is here rather than on the filing

The three documents you file - the Article 998 motion, the Article 991 order and the Article 992 order - recite statute text, rule text and your own answers, and nothing else. This build's own identifiers and the committed record's own words are internal record text, and they are set out here instead, so that the pages a clerk stamps and a judge signs carry only what the Legislature put on them. Nothing has been shortened and nothing has been dropped from the packet.

- Component identities. The Article 998 motion is la-977d-marijuana-first-offense-primary-filing-1, the Article 991 order is la-977d-marijuana-first-offense-proposed-order-2, the Article 992 order is la-977d-marijuana-first-offense-proposed-order-3 and these instructions are la-977d-marijuana-first-offense-instructions-5. Those are this factory's own identifiers for the four documents. They used to print in the caption of all three filed documents and again in the motion's signature block; they print on no filed page now.

- Where the Article 991 and Article 992 order texts come from. Both are composed from the committed LA-STATUTORY-FORMS authority. Each order now cites only its own Article.

- Where the Article 998 motion text comes from. It is composed from the Article 998 statutory text this packet is bound to by the content digest 8625ccd4043e2045832f647331984372390c74d1e5e10166e40b305c1d445fb4, which is what Article 986(A) requires of a rendering of a mandatory statutory form. The motion now says only that its prayer and ex parte paragraph are the Legislature's own words.

- Race and gender on the motion. The committed manual-completion record classifies both as manual completion items pending a data-protection review. That is why the packet prints them blank and the motion says only that you write them by hand.

- The first-offence question. The committed record makes a second or later possession offence the first of the conditions on which self-help stops. The motion now tells you to stop and get a lawyer's advice, which is what that condition means for you.

- Both signature blocks on the motion. The committed record requires both signature blocks the statute prints to be carried, which is why the attorney block appears even though this packet holds no record that you are represented. The motion now says only that counsel completes it or nobody does.

Six fields that are on the Article 992 order rather than on the Article 998 motion

Article 986(A) makes the statutory forms exclusive and Article 986(C) allows only the name of the court to vary on one. The Article 998 statutory text prints no line for the date of arrest, for how many charges or counts the arrest carries, for the original arrest charges, for whether the conviction is a misdemeanor or a felony, for the statute you were convicted under, or for whether this was a first possession offense. All six are needed to identify the record this decree reaches, so all six are carried on the Article 992 order instead of being added to the face of the form the Legislature wrote. Answer them there.

Everything the committed record requires to be in place before filing (all 15 item(s) it lists)

This list is the packet set's own. Some items are yours, some belong to the district attorney, the clerk or the judge. Every one of them is reproduced here, in the record's own words and in the record's own order, so that nothing on it reaches you shortened. Where an item describes a document this packet does not contain, or names a form this track does not use, the record's words are printed unchanged and a correction is added beneath them.

- Item 1 of 15: Obtain Louisiana criminal background check dated within the past sixty days. Louisiana State Police recommends a fingerprint-based Right to Review, because the motion must match the state rap sheet on arrest and booking date, original arrest charge, arrest number and counts. Order it so it is still inside its sixty-day life on the day the motion is filed; the Article 989 form marks it required on its face.

- Item 2 of 15: Obtain Minute entry showing the final disposition. Ask the clerk of court for the minute entry that shows how each charge was finally disposed of.

- Item 3 of 15: Obtain Bill of information or indictment for each charge. Ask the clerk of court in the parish of arrest or conviction for a copy of the bill of information or indictment for each charge on the arrest.

- Item 4 of 15: Obtain Returned Article 988 Motion for Fee Exemption, completed and signed by the district attorney. The packet gives you the Article 988 form with your own fields filled in. Take or send it to the district attorney's office BEFORE the motion is filed. The district attorney or a designee completes the certification boxes and signs, and returns it within fifteen days. Append it to the motion at filing only if you are found eligible. Filing without it means paying the fee, and Article 983 makes the fee non-refundable even if the motion is denied.

- This packet does not give you the Article 988 form. la-977d-marijuana-first-offense-fee-waiver-4 is conditional on the record, and the condition the record states is "Generated only where the participant may qualify for the Article 983(F) exemption, whose grounds are non-conviction grounds and so rarely reach this track." This is a conviction track, so the condition is not met, the component is not generated and no Article 988 form is enclosed. Everything else the item says still applies: if you believe the exemption may nonetheless reach you, ask the clerk of court or the district attorney's office for the Article 988 form and take or send it to the district attorney before the motion is filed. If you file without it you pay the fee, and Article 983 makes the fee non-refundable even if the motion is denied.

- Item 5 of 15: Obtain Affidavit of No Opposition from each named agency. The agencies' own instrument on the Article 990 form. The Article 998 motion's prayer asks that where one from each named agency is attached, no contradictory hearing be required and the motion be granted ex parte. LegalEase cannot prepare, complete or sign it.

- Item 6 of 15: Race and gender - Article 998 Motion, Part I Defendant Information.

- Item 7 of 15: The participant's signature and the date of signing - Article 998 Motion, the 'If not represented by counsel' signature block.

- Item 8 of 15: Every finding, ruling, date, place and signature on the Article 991 Order - Article 991 Order - the ordering paragraphs, the date and place line and the judge's signature line.

- Item 9 of 15: Every granting or denying paragraph, finding, date, place and signature on the Article 992 Order of Expungement - Article 992 Order of Expungement - the decretal paragraphs, the date and place line and the judge's signature line.

- Item 10 of 15: Every certification box and the district attorney's signature on the Article 988 Motion for Fee Exemption - Article 988 Motion for Fee Exemption, the certification section and signature block.

- Item 11 of 15: The whole of the Article 990 Affidavit of Response - Not printed in the participant packet; described in the filing instructions only.

- Item 12 of 15: The clerk's service of the motion and of the order and judgment - Not printed in the participant packet; described in the filing instructions only.

- Item 13 of 15: The mover signs the Article 989 Motion in the block headed 'If not represented by counsel'. LegalEase leaves the signature and date blank.

- There is no Article 989 Motion in this packet, and none is used on this track. The committed record names one here, and that is a slip carried in from a sibling Louisiana track. The same registry's own filing rule says in terms that "the Article 989 form is not used here", Article 986 makes the Article 998 form the form to be used for this category, and the committed manual-completion record correctly names the Article 998 Motion. Read the item as referring to the Article 998 Motion enclosed with this packet, and sign THAT one in its block headed "If not represented by counsel".

- Item 14 of 15: The ordinary Article 983(A) cap of five hundred fifty dollars now applies. The three-hundred-dollar cap formerly in Article 983(M) - fifty dollars each to the Bureau, the sheriff and the district attorney and one hundred fifty to the clerk - was null, void and without effect and terminated on 1 August 2026 under Article 983(M)(5), and is now historical only. The clerk collects at filing and the fees are non-refundable even if the motion is denied.

- Item 15 of 15: Article 983(F) through the Article 988 Motion for Fee Exemption, whose grounds are non-conviction grounds and therefore rarely reach a conviction track.

What you must supply before filing

Check every prefilled fact against your own court record and your background check, and correct the packet where they disagree. The blanks below are deliberately empty and are yours to complete.

Document | Blank on the document | What you must supply

LA-CCRP-ART-998 | NAME (Last, First, MI) | your name written SURNAME FIRST, in the order the form rules underneath the line - last name, then first name, then middle initial - and spelled exactly as the state rap sheet spells it, because the Bureau matches this motion to your record by that name

LA-CCRP-ART-998 | Race | your race, written as the state rap sheet writes it, so Part I matches the record the Bureau holds

LA-CCRP-ART-998 | Gender | your gender, written as the state rap sheet writes it, so Part I matches the record the Bureau holds

LA-CCRP-ART-998 | Last four digits of the Social Security number | the last four digits of your Social Security number, written on the form by hand at the moment you file

LA-CCRP-ART-998 | Driver's licence number | your driver's licence number, or leave it blank if you have never held one

LA-CCRP-ART-998 | SID number shown on the state rap sheet | your SID number exactly as your rap sheet prints it, or leave it blank if your rap sheet shows none

LA-CCRP-ART-998 | Arrest or booking number shown on the state rap sheet | the arrest number (ATN) exactly as your Right to Review or sheriff's background check prints it

LA-CCRP-ART-998 | Arresting law enforcement item number for this arrest | the arresting agency's item number for this arrest, from your rap sheet or the agency's own report

LA-CCRP-ART-998 | Mover postal address in the unrepresented-mover block | your own postal address, as at the day you sign

LA-CCRP-ART-998 | Mover city, state and ZIP code in the unrepresented-mover block | your own city, state and ZIP code

LA-CCRP-ART-998 | Mover telephone number in the unrepresented-mover block | a telephone number the clerk and the court can reach you on

LA-CCRP-ART-992 | Original arrest charge and statute for every count as they appear on the state rap sheet | each charge at the time of arrest - the original arrest charge and statute for every count, exactly as the state rap sheet writes them, not the charge you were finally convicted of and not the amended charge, and not leaving a count out

LA-CCRP-ART-992 | Statute the mover was convicted under | the statute you were convicted under, exactly as your own court record writes it; the Article 998 statutory motion prints no line for it, so this order is where it goes

LA-CCRP-ART-992 | Whether this was the mover's first offense for possession of marijuana, tetrahydrocannabinol or a chemical derivative | whether this was your FIRST offence for possession of marijuana, tetrahydrocannabinol or a chemical derivative - the whole eligibility test for this route

The blank on that list the record singles out is whether this was your FIRST offence for possession of marijuana. The committed record calls it the whole eligibility test for this route, and this packet does not answer it for you: a second or later possession offence is not this route at all and falls back to Article 977(A). The original arrest charge is the second one to be careful with, because Louisiana State Police names using the amended charge instead of the original arrest charge, and omitting counts, among the common fatal errors on a Louisiana expungement.

What you must obtain or confirm before filing (17 item(s) held by the committed track registry)

- obtain_document (required, required before filing): Obtain Louisiana criminal background check dated within the past sixty days. Louisiana State Police recommends a fingerprint-based Right to Review, because the motion must match the state rap sheet on arrest and booking date, original arrest charge, arrest number and counts. Order it so it is still inside its sixty-day life on the day the motion is filed; the Article 989 form marks it required on its face. Obtained from: Louisiana State Police (Right to Review) or the parish sheriff.

- obtain_document (conditional, required before filing): Obtain Minute entry showing the final disposition. Ask the clerk of court for the minute entry that shows how each charge was finally disposed of. Obtained from: Clerk of court for the parish. Condition: Applies where the case reached a disposition on the court's minutes.

- obtain_document (conditional, required before filing): Obtain Bill of information or indictment for each charge. Ask the clerk of court in the parish of arrest or conviction for a copy of the bill of information or indictment for each charge on the arrest. Obtained from: Clerk of court for the parish. Condition: Applies where a prosecution was instituted, so a charging instrument exists.

- obtain_document (conditional, required before filing): Obtain Returned Article 988 Motion for Fee Exemption, completed and signed by the district attorney. The packet gives you the Article 988 form with your own fields filled in. Take or send it to the district attorney's office BEFORE the motion is filed. The district attorney or a designee completes the certification boxes and signs, and returns it within fifteen days. Append it to the motion at filing only if you are found eligible. Filing without it means paying the fee, and Article 983 makes the fee non-refundable even if the motion is denied. Obtained from: The district attorney's office for the parish. Condition: Applies only where the participant may qualify for the Article 983(F) fee exemption.

- This packet does not give you the Article 988 form. la-977d-marijuana-first-offense-fee-waiver-4 is conditional on the record, and the condition the record states is "Generated only where the participant may qualify for the Article 983(F) exemption, whose grounds are non-conviction grounds and so rarely reach this track." This is a conviction track, so the condition is not met, the component is not generated and no Article 988 form is enclosed. Everything else the item says still applies: if you believe the exemption may nonetheless reach you, ask the clerk of court or the district attorney's office for the Article 988 form and take or send it to the district attorney before the motion is filed. If you file without it you pay the fee, and Article 983 makes the fee non-refundable even if the motion is denied.

- obtain_document (conditional, required before filing): Obtain Affidavit of No Opposition from each named agency. The agencies' own instrument on the Article 990 form. The Article 998 motion's prayer asks that where one from each named agency is attached, no contradictory hearing be required and the motion be granted ex parte. LegalEase cannot prepare, complete or sign it. Obtained from: The district attorney, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency. Condition: Optional; the track does not depend on it.

- complete_field (required, required before filing): Race and gender - Article 998 Motion, Part I Defendant Information.

- complete_field (required, required before filing): The participant's signature and the date of signing - Article 998 Motion, the 'If not represented by counsel' signature block.

- complete_field (required, required before filing): Every finding, ruling, date, place and signature on the Article 991 Order - Article 991 Order - the ordering paragraphs, the date and place line and the judge's signature line.

- complete_field (required, required before filing): Every granting or denying paragraph, finding, date, place and signature on the Article 992 Order of Expungement - Article 992 Order of Expungement - the decretal paragraphs, the date and place line and the judge's signature line.

- complete_field (required, required before filing): Every certification box and the district attorney's signature on the Article 988 Motion for Fee Exemption - Article 988 Motion for Fee Exemption, the certification section and signature block.

- complete_field (required, required before filing): The whole of the Article 990 Affidavit of Response - Not printed in the participant packet; described in the filing instructions only.

- complete_field (required, required before filing): The clerk's service of the motion and of the order and judgment - Not printed in the participant packet; described in the filing instructions only.

- sign (required, required before filing): The mover signs the Article 989 Motion in the block headed 'If not represented by counsel'. LegalEase leaves the signature and date blank.

- There is no Article 989 Motion in this packet, and none is used on this track. The committed record names one here, and that is a slip carried in from a sibling Louisiana track. The same registry's own filing rule says in terms that "the Article 989 form is not used here", Article 986 makes the Article 998 form the form to be used for this category, and the committed manual-completion record correctly names the Article 998 Motion. Read the item as referring to the Article 998 Motion enclosed with this packet, and sign THAT one in its block headed "If not represented by counsel".

- pay_fee (required, required before filing): The ordinary Article 983(A) cap of five hundred fifty dollars now applies. The three-hundred-dollar cap formerly in Article 983(M) - fifty dollars each to the Bureau, the sheriff and the district attorney and one hundred fifty to the clerk - was null, void and without effect and terminated on 1 August 2026 under Article 983(M)(5), and is now historical only. The clerk collects at filing and the fees are non-refundable even if the motion is denied.

- apply_fee_waiver (conditional, required before filing): Article 983(F) through the Article 988 Motion for Fee Exemption, whose grounds are non-conviction grounds and therefore rarely reach a conviction track. Condition: Applies only when the participant cannot pay the filing fee.

- serve_party (required): The participant does not serve anyone. Under Article 979 the clerk of court serves notice of the motion by United States mail or electronically on the district attorney of the parish of conviction, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency, and files a certificate of service showing the mailing date. Under Article 982, if expungement is granted the clerk serves the order and judgment on the district attorney, the Bureau, the sheriff of the parish of conviction and the arresting agency.

- file (required): File the Article 998 Motion for Expungement with the proposed Article 991 Order and the proposed Article 992 Order of Expungement with the clerk of court in the parish of conviction, at any time after ninety days from the date of conviction. Article 986 makes Article 998 the form to be used for this category; the Article 989 form is not used here.

The documents the record says you obtain and attach (5 item(s))

- Louisiana criminal background check dated within the past sixty days (required, required before filing). From: Louisiana State Police (Right to Review) or the parish sheriff. Louisiana State Police recommends a fingerprint-based Right to Review, because the motion must match the state rap sheet on arrest and booking date, original arrest charge, arrest number and counts. Order it so it is still inside its sixty-day life on the day the motion is filed; the Article 989 form marks it required on its face.

- Minute entry showing the final disposition (conditional, required before filing). From: Clerk of court for the parish. Condition: Applies where the case reached a disposition on the court's minutes. Ask the clerk of court for the minute entry that shows how each charge was finally disposed of.

- Bill of information or indictment for each charge (conditional, required before filing). From: Clerk of court for the parish. Condition: Applies where a prosecution was instituted, so a charging instrument exists. Ask the clerk of court in the parish of arrest or conviction for a copy of the bill of information or indictment for each charge on the arrest.

- Returned Article 988 Motion for Fee Exemption, completed and signed by the district attorney (conditional, required before filing). From: The district attorney's office for the parish. Condition: Applies only where the participant may qualify for the Article 983(F) fee exemption. The packet gives you the Article 988 form with your own fields filled in. Take or send it to the district attorney's office BEFORE the motion is filed. The district attorney or a designee completes the certification boxes and signs, and returns it within fifteen days. Append it to the motion at filing only if you are found eligible. Filing without it means paying the fee, and Article 983 makes the fee non-refundable even if the motion is denied.

- This packet does not give you the Article 988 form. la-977d-marijuana-first-offense-fee-waiver-4 is conditional on the record, and the condition the record states is "Generated only where the participant may qualify for the Article 983(F) exemption, whose grounds are non-conviction grounds and so rarely reach this track." This is a conviction track, so the condition is not met, the component is not generated and no Article 988 form is enclosed. Everything else the item says still applies: if you believe the exemption may nonetheless reach you, ask the clerk of court or the district attorney's office for the Article 988 form and take or send it to the district attorney before the motion is filed. If you file without it you pay the fee, and Article 983 makes the fee non-refundable even if the motion is denied.

- Affidavit of No Opposition from each named agency (conditional, required before filing). From: The district attorney, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency. Condition: Optional; the track does not depend on it. The agencies' own instrument on the Article 990 form. The Article 998 motion's prayer asks that where one from each named agency is attached, no contradictory hearing be required and the motion be granted ex parte. LegalEase cannot prepare, complete or sign it.

Where this is filed

- Venue: The court with trial jurisdiction over the offence in the parish of conviction, under Article 972.1.

- Destination (clerk): Clerk of court for the parish of conviction

- File the Article 998 motion with the proposed Article 991 and Article 992 orders. The clerk collects the Article 983(A) fees at filing.

What it costs, and the fee exemption

- Fees: The ordinary Article 983(A) cap of five hundred fifty dollars now applies. The three-hundred-dollar cap formerly in Article 983(M) - fifty dollars each to the Bureau, the sheriff and the district attorney and one hundred fifty to the clerk - was null, void and without effect and terminated on 1 August 2026 under Article 983(M)(5), and is now historical only. The clerk collects at filing and the fees are non-refundable even if the motion is denied.

- Fee waiver: Article 983(F) through the Article 988 Motion for Fee Exemption, whose grounds are non-conviction grounds and therefore rarely reach a conviction track.

Notice, objection and service

- Notice and objection: Under Article 980 any entity served under Article 979 may object by filing an affidavit of response, with reasons and with service on the defendant, within sixty days from the date of service of the motion. Since 1 August 2015 the Louisiana Bureau of Criminal Identification and Information is on the same sixty-day period as everyone else. Article 980(C) lets the court grant one extension of not more than thirty days beyond the original sixty. A timely objection means a contradictory hearing, which the objecting party must ask to have set. Where an Affidavit of No Opposition executed by each named agency is attached to the motion, the Article 991 Order states that no contradictory hearing is required and the motion may be granted ex parte.

- Service: The participant does not serve anyone. Under Article 979 the clerk of court serves notice of the motion by United States mail or electronically on the district attorney of the parish of conviction, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency, and files a certificate of service showing the mailing date. Under Article 982, if expungement is granted the clerk serves the order and judgment on the district attorney, the Bureau, the sheriff of the parish of conviction and the arresting agency.

Signing

- Signature: The mover signs the Article 989 Motion in the block headed 'If not represented by counsel'. LegalEase leaves the signature and date blank.

- There is no Article 989 Motion in this packet, and none is used on this track. The committed record names one here, and that is a slip carried in from a sibling Louisiana track. The same registry's own filing rule says in terms that "the Article 989 form is not used here", Article 986 makes the Article 998 form the form to be used for this category, and the committed manual-completion record correctly names the Article 998 Motion. Read the item as referring to the Article 998 Motion enclosed with this packet, and sign THAT one in its block headed "If not represented by counsel".

- Notarization: none

Fields deliberately left blank (all 7 manual-completion item(s) the record holds)

- Item 1 of 7: Race and gender. Where: Article 998 Motion, Part I Defendant Information. Why: The statutory form provides these fields, but counsel classified race and gender as a manual completion item pending a data-protection review, so the packet prints them blank.

- Item 2 of 7: The participant's signature and the date of signing. Where: Article 998 Motion, the 'If not represented by counsel' signature block. Why: LegalEase never signs for the participant.

- Item 3 of 7: Every finding, ruling, date, place and signature on the Article 991 Order. Where: Article 991 Order - the ordering paragraphs, the date and place line and the judge's signature line. Why: The Article 991 Order is the judge's own procedural order. It sets the objection window and directs the clerk to serve. Nothing on it is the participant's to assert or sign.

- Item 4 of 7: Every granting or denying paragraph, finding, date, place and signature on the Article 992 Order of Expungement. Where: Article 992 Order of Expungement - the decretal paragraphs, the date and place line and the judge's signature line. Why: The final order is the court's judgment. LegalEase supplies the caption and the participant's identifying and charge information only.

- Item 5 of 7: Every certification box and the district attorney's signature on the Article 988 Motion for Fee Exemption. Where: Article 988 Motion for Fee Exemption, the certification section and signature block. Why: The form's own instruction assigns the certification to the district attorney or a designee. LegalEase completes only the participant-owned identifying fields.

- Item 6 of 7: The whole of the Article 990 Affidavit of Response. Where: Not printed in the participant packet; described in the filing instructions only. Why: Article 990 is the responding agency's instrument. Under Article 980 it is filed by the district attorney, the Louisiana Bureau of Criminal Identification and Information or the arresting agency, and it is signed by that agency's attorney. It is never a participant form.

- Item 7 of 7: The clerk's service of the motion and of the order and judgment. Where: Not printed in the participant packet; described in the filing instructions only. Why: Articles 979 and 982 place service on the clerk of court, not on the participant.

- Sign and date the unrepresented-mover block on the Article 998 motion yourself, after reading it. If you are represented, give the packet to your attorney; the attorney block belongs to counsel and is left blank here. The committed record requires both signature blocks the statute prints to be carried, which is why both appear.

- Leave every ordering paragraph, finding, granted-or-denied election, return date, date, place and judge's signature on the Article 991 Order and the Article 992 Order of Expungement blank. Those are the court's.

- Leave the clerk's filed-on stamp and the clerk's certificate of service blank. Article 979 makes service the clerk's act.

- The Article 990 Affidavit of Response is the responding entity's own instrument. It is not printed in this packet and you never complete it.

Stop self-help and get legal help (all 5 stop conditions the record holds)

- Stop 1 of 5: The conviction is not a first offence for possession of marijuana, tetrahydrocannabinol or a chemical derivative.

- Stop 2 of 5: The conviction is a felony rather than a misdemeanour.

- Stop 3 of 5: Any named agency files an Article 990 affidavit of response objecting to the motion.

- Stop 4 of 5: The court sets a contradictory hearing under Article 980(D).

- Stop 5 of 5: The participant is in hard-labour custody, so Article 975 bars filing.

Hard eligibility boundaries the record states (3 exclusion(s))

- A conviction that is not a first offence for possession of marijuana, tetrahydrocannabinol or chemical derivatives thereof. A second or later possession offence falls back to Article 977(A).

- A felony marijuana conviction, which is Article 978 territory and subject to the Article 978(B)(3) controlled dangerous substance exclusions and their exceptions.

- A person in the physical custody of the Department of Public Safety and Corrections serving a sentence at hard labour may not file (Art. 975).

Waiting periods (1):

- First-offence possession of marijuana, tetrahydrocannabinol or chemical derivatives misdemeanour conviction: Ninety days from the date of conviction. This route survives; the August 2026 sunset fell on the reduced fee in Article 983(M), not on Article 977(D).

The limitations counsel attached to the legal design (all 8)

- Limitation 1 of 8 (packet_instruction): The \$300 fee cap in Art. 983(M) terminated on August 1, 2026 by its own terms. Price this route at the ordinary Art. 983(A) \$550 cap and classify the \$300 rule as historical. Do not repeat the 'file by July 31' warning as current advice.
- Limitation 2 of 8 (packet_instruction): On the face of the two articles, what ends is the reduced fee, and the 90-day filing route survives at the ordinary \$550 cost.
- Limitation 3 of 8 (participant_question): Whether the possession conviction is a first offence, which is the whole eligibility test for this route.
- Limitation 4 of 8 (packet_instruction): Use the Art. 998 form and not the Art. 989 form.
- Limitation 5 of 8 (manual_completion_item): Race and gender fields on Arts. 989 and 994 - Manual completion item, pending data-protection review.
- Limitation 6 of 8 (manual_completion_item): Affidavit of No Opposition and Art. 990 response - Manual completion item, agencies only.
- Limitation 7 of 8 (scope_restriction): Art. 975 hard-labor custody filing bar - Scope restriction.
- Limitation 8 of 8 (packet_instruction): Build the sixty-day background check clock into the packet sequence, and the thirty-day feel of it: order the check, assemble certifications, file while it is fresh.

What the committed record requires these instructions to carry

Sequencing is the deliverable in Louisiana. The instructions carry, in order: order the Right to Review or sheriff's background check and watch its sixty-day life; complete the participant fields of the Article 988 fee exemption and deliver it to the district attorney BEFORE filing, expecting it back within fifteen days; request whichever Article 989 certification letters the chosen eligibility basis needs; file with the clerk with the fee or the returned exemption; the clerk serves the district attorney, the Bureau and the arresting agency under Article 979; agencies have sixty days from service to object under Article 980, extendable once by up to thirty days; an Affidavit of No Opposition from each named agency attached to the motion supports an ex parte grant with no contradictory hearing; if expungement is granted the clerk serves the order and judgment under Article 982. It also carries the Louisiana State Police list of common fatal errors: wrong arrest date, using the amended charge instead of the original arrest charge, omitting counts, putting misdemeanours and felonies in the wrong section, missing dispositions or certifications, and choosing the wrong eligibility basis. On this track the instructions state the current fee position plainly: the three-hundred-dollar cap in Article 983(M) was null, void and without effect and terminated on 1 August 2026 by its own terms in Article 983(M)(5), so the ordinary Article 983(A) five-hundred-fifty-dollar cap now applies. The former 'file by 31 July 2026' advice is historical and must not be repeated as current guidance.

What the committed record says about the Article 998 form itself

The Article 998 Motion for Expungement for Misdemeanor Conviction for a First Offense Possession of Marijuana, mandatory for this category under Article 986 and used instead of the Article 989 form. Part I is defendant information; Part II asks only for the conviction date, from which the ninety-day period is computed. Its prayer carries the same ex parte request where an Affidavit of No Opposition by each named agency is attached. Source note Acts 2023, No. 342, Sec. 1. Retained by Edition 1.1 as a source-gated asset; the retained copy is a legis.la.gov browser-print PDF that needs a faithful court-ready renderer and field map before release. Output strategy corrected to custom_pleading by rcap-la-arts-993-995-998-output-strategy-memo-correction, against the adjudication at rcap-la-arts-993-995-998-html-source-output-strategy-adjudication. There is no official PDF of this article: the Legislature publishes the controlling text as HTML on its own article page, and the retained capture is a browser print of that page rather than an issuer publication, so official_pdf_fill can only resolve to a missing source. process_guidance is equally wrong, because a participant submission exists on this component. The article remains the authority and the source identity, which is why officialFormId and officialSourceUrl are kept. Article 986(A) makes the statutory forms exclusive, so the rendering must reproduce the Legislature's own words rather than paraphrase them, and under Article 986(C) the court name is the only authorized variation. The Louisiana Supreme Court's local city and parish packet is not a statewide substitute and must not be used as one. No template exists yet, none is counsel-approved, and no implementation is authorized here. This is the mover's own motion and the participant, or counsel where the participant is represented, signs it, so both signature blocks the statute prints must be carried. Article 986 makes this form mandatory for this category in place of the Article 989 motion, and the statutory source note is Acts 2023, No. 342, Sec. 1.

What the record does not settle (3 open question(s))

- Whether any clerk of court continues to apply the terminated Article 983(M) three-hundred-dollar schedule to motions filed after 1 August 2026, and whether any parish publishes a different collection practice for Article 977(D) motions. (impact: release_blocker; affects: filing_process)
- Article 998 is retained by Edition 1.1 only as a legis.la.gov browser-print PDF with no form fields, recorded in the state manifest as requiring a faithful court-ready renderer and field map. Confirm the canonical court-ready rendering before release. (impact: release_blocker; affects: correct_form)
- Title XXXIV was amended three times in the 2024 Regular Session - Acts 270 (Articles 972 and 983(G); enacting 999 and 999.1), 560 (enacting 985.3) and 580 (Article 978) - after the reviewed source notes, which ran through 2023. No 2025 or 2026 session amendment to Title XXXIV was located. Louisiana needs the scheduled annual re-verification the review recommended, on the same footing as Kansas. (impact: nonblocking_research_note; affects: governing_mechanism)

What this packet is not

This built packet is review evidence. It is pending independent completeness verification, raster acceptance, visual review and counsel review. It is not approved for live use, it opens no route, and it is not legal advice.

Filing instructions - Motion for Expungement for Misdemeanor Conviction for a First Offense Possession of Marijuana (La. C.Cr.P. arts. 977(D), 998)

Prepared for Maria-Alejandra O'Shaughnessy-Whitfield.

- Filing: File the Article 998 Motion for Expungement with the proposed Article 991 Order and the proposed Article 992 Order of Expungement with the clerk of court in the parish of conviction, at any time after ninety days from the date of conviction. Article 986 makes Article 998 the form to be used for this category; the Article 989 form is not used here.
- Where: Clerk of court for the parish of conviction. File the Article 998 motion with the proposed Article 991 and Article 992 orders. The clerk collects the Article 983(A) fees at filing.
- Venue: The court with trial jurisdiction over the offence in the parish of conviction, under Article 972.1.
- What the registry says about filing: File the Article 998 Motion for Expungement with the proposed Article 991 Order and the proposed Article 992 Order of Expungement with the clerk of court in the parish of conviction, at any time after ninety days from the date of conviction. Article 986 makes Article 998 the form to be used for this category; the Article 989 form is not used here.
- What it costs: The ordinary Article 983(A) cap of five hundred fifty dollars now applies. The three-hundred-dollar cap formerly in Article 983(M) - fifty dollars each to the Bureau, the sheriff and the district attorney and one hundred fifty to the clerk - was null, void and without effect and terminated on 1 August 2026 under Article 983(M)(5), and is now historical only. The clerk collects at filing and the fees are non-refundable even if the motion is denied.
- Fee exemption: Article 983(F) through the Article 988 Motion for Fee Exemption, whose grounds are non-conviction grounds and therefore rarely reach a conviction track.
- Service: The participant does not serve anyone. Under Article 979 the clerk of court serves notice of the motion by United States mail or electronically on the district attorney of the parish of conviction, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency, and files a certificate of service showing the mailing date. Under Article 982, if expungement is granted the clerk serves the order and judgment on the district attorney, the Bureau, the sheriff of the parish of conviction and the arresting agency.

The order of operations the committed record fixes

Sequencing is the deliverable in Louisiana. The instructions carry, in order: order the Right to Review or sheriff's background check and watch its sixty-day life; complete the participant fields of the Article 988 fee exemption and deliver it to the district attorney BEFORE filing, expecting it back within fifteen days; request whichever Article 989 certification letters the chosen eligibility basis needs; file with the clerk with the fee or the returned exemption; the clerk serves the district attorney, the Bureau and the arresting agency under Article 979; agencies have sixty days from service to object under Article 980, extendable once by up to thirty days; an Affidavit of No Opposition from each named agency attached to the motion supports an ex parte grant with no contradictory hearing; if expungement is granted the clerk serves the order and judgment under Article 982. It also carries the Louisiana State Police list of common fatal errors: wrong arrest date, using the amended charge instead of the original arrest charge, omitting counts, putting misdemeanours and felonies in the wrong section, missing dispositions or certifications, and choosing the wrong eligibility basis. On this track the instructions state the current fee position plainly: the three-hundred-dollar cap in Article 983(M) was null, void and without effect and terminated on 1 August 2026 by its own terms in Article 983(M)(5), so the ordinary Article 983(A) five-hundred-fifty-dollar cap now applies. The former 'file by 31 July 2026' advice is historical and must not be repeated as current guidance.

Packet set: la-977d-marijuana-first-offense-set